



**Order under Section 21.2 of the  
Statutory Powers Procedure Act  
and the Residential Tenancies Act, 2006**

**Citation:** XU v BUSSOLI, 2025 ONLTB 97834

**Date:** 2025-12-24

**File Number:** LTB-L-052666-25-RV

**In the matter of:** 14 BROWN WOOD DR  
BARRIE ON L4M6N4

**Between:** Lei Xu  
Huijie Song

Landlords

**And**

Eugenio Bussoli  
Ida Rachel Greco

Tenants

**Review Order**

Lei Xu and Huijie Song (the 'Landlords') applied for an order to terminate the tenancy and evict Eugenio Bussoli and Ida Rachel Greco (the 'Tenants') because the Tenants did not pay the rent that the Tenants owe.

The application was resolved by order LTB-L-052666-25 issued on September 17, 2025.

On September 22, 2025 the Tenants requested a review of the order and that the order be stayed until the request to review the order is resolved.

On September 25, 2025 interim order LTB-L-052666-25-RV-IN was issued, staying the order issued on September 17, 2025.

This application was heard by videoconference on October 20, 2025.

The Landlord Lei Xu, the Landlords' legal representative, Taff Butters and the Tenants attended the hearing.

**Determinations:**Request to Review

1. The initial hearing was attended by the Tenant Eugenio Bussoli (EB). The Tenant Ida Rachel Greco (IG) was unaware of the proceedings because they were hospitalized and EB did not tell them about it to shield them from the stress. EB did not have specific authorization to act on behalf of IG at the hearing. I am satisfied that EB was not reasonably able to participate in the hearing because they were in the midst of a lengthy hospitalization with no access to their email, and the other tenant did not share the information with them.
2. The request to review is granted. As a result, order LTB-L-052666-25 issued on September 17, 2025 was cancelled, and a new hearing was held to consider the merits of the original application.

Merits of the Original Application

3. The Landlords served the Tenants with a valid Notice to End Tenancy Early for Non-payment of Rent (N4 Notice). The Tenants did not void the notice by paying the amount of rent arrears owing by the termination date in the N4 Notice or before the date the application was filed.
4. As of the hearing date, the Tenants were still in possession of the rental unit. IG did not live in the unit for approximately 18 months while they were hospitalized, however they are now residing in the rental unit. EB is not currently living in the rental unit, but wishes to remain financially involved to support IG continuing to live in the unit.
5. The lawful rent is \$2,287.80. It is due on the 1st day of each month.
6. Based on the Monthly rent, the daily rent/compensation is \$75.22. This amount is calculated as follows:  $\$2,287.80 \times 12$ , divided by 365 days.
7. The Tenants have not made any payments since the application was filed.
8. The rent arrears owing to October 31, 2025 are \$26,951.40.
9. The Landlords incurred costs of \$186.00 for filing the application and is entitled to reimbursement of those costs.
10. The Landlords collected a rent deposit of \$2,100.00 from the Tenants and this deposit is still being held by the Landlords. The rent deposit can only be applied to the last rental period of the tenancy if the tenancy is terminated.
11. Interest on the rent deposit, in the amount of \$216.36 is owing to the Tenants for the period from March 1, 2020 to October 20, 2025.

12. I have considered all of the disclosed circumstances in accordance with subsection 83(2) of the *Residential Tenancies Act, 2006* (the 'Act'), and find that it would not be unfair to grant relief from eviction subject to the conditions set out in this order pursuant to subsection 83(1)(a) and 204(1) of the Act.
13. The Tenants proposed a payment plan to preserve the tenancy for the benefit of IG's health. The payment plan included payments of \$6,862.00 (representing the rent for October, November, and December 2025) by December 8, 2025 by IG. IG is currently receiving social assistance and support from family. EB will pay the rent going forward. They had not paid rent in recent months pending the outcome of the hearing as they needed the funds for first and last at a new unit if the tenancy were not continuing. The Landlords are not opposed to the payment plan.

**It is ordered that:**

1. The request to review order LTB-L-052666-25 issued on September 17, 2025 is granted.
2. Order LTB-L-052666-25 issued on September 17, 2025 is cancelled and replaced by the following:
3. The Tenants shall pay to the Landlords \$27,137.40 for arrears of rent up to September 30, 2025 and costs.
4. The Tenants shall pay to the Landlords the amount set out in paragraph 1 in accordance with the following schedule:

|                                                                                             |                                                                     |
|---------------------------------------------------------------------------------------------|---------------------------------------------------------------------|
| On or before December 8, 2025                                                               | \$6,862.00 (\$2,287.00 arrears, \$4,575.00 October – December rent) |
| On or before the 17 <sup>th</sup> of each month from November 17, 2025 to December 17, 2026 | \$1,500.00 (arrears)                                                |
| January 17, 2027                                                                            | \$850.40 (arrears and filing fee)                                   |

5. The Tenants shall also pay to the Landlord new rent on time and in full as it comes due and owing for the period January 1, 2025 to January 1, 2027 or until the arrears are paid in full, whichever date is earliest.
6. If the Tenants fail to make any one of the payments in accordance with this order, the outstanding balance of any arrears of rent and costs to be paid by the Tenants to the Landlords pursuant to paragraph 1 of this order shall become immediately due and owing and the Landlord may, without notice to the Tenants, apply to the LTB within 30 days of the Tenants' breach pursuant to section 78 of the Act for an order terminating the tenancy

and evicting the Tenants and requiring that the Tenants pay any new arrears, NSF fees and related charges that became owing after September 30, 2025.

**December 24, 2025**  
**Date Issued**

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Dawn Carr  
Member, Landlord and Tenant Board

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If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

2025 ONLTB 97834 (CanLII)